County Council Special Called Meeting
Beaufort County, SC

Council Chambers, Administration Building
Beaufort County Government Robert Smalls Complex
100 Ribaut Road, Beaufort

AT THE CONCLUSION OF THE PUBLIC FACILITIES COMMITTEE MEETING, NO SOONER THAN 5:00 PM

Tuesday, January 20, 2026
5:00 PM

MINUTES

Watch the video stream available on the County's website to hear the Council's discussion of a specific topic or the complete meeting https://beaufortcountysc.new.swagit.com/videos/372647

1. Call to Order

Chair Howard called the meeting to order at 5:09 PM

Present
Chair Alice Howard
Vice-Chair Anna Maria Tabernik
Council Member David Bartholomew
Council Member Paula Brown
Council Member Logan Cunningham - Virtual
Council Member Gerald Dawson
Council Member York Glover
Council Member Mark Lawson
Council Member Lawrence McElynn - Virtual
Council Member Joseph Passiment
Council Member Thomas Reitz

2. Pledge of Allegiance

Chair Howard led the Pledge of Allegiance.

3. Statement of Compliance with FOIA

Chair Howard stated that public notification of this meeting had been published, posted, and distributed in compliance with SC FOIA.

4. Approval of Agenda

Motion: It was moved by Council Member Passiment, seconded by Council Member Dawson to approve the agenda.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

5. Public Comment Period

Public comments were taken.

6. Executive Session

Motion: It was moved by Council Member Lawson, seconded by Council Member Dawson to go into Executive Session.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

a. Under S.C. Code section 30-4-70(a)(2) legal advice related to discussion of negotiations incident to pending litigation or other matters covered by the attorney client privilege (Update related to settlement terms of Hatcher Holdings v. Beaufort County (Prospect Road on Daufuskie Island).

7. End of Executive Session

a. Matters arising out of Executive Session

Motion: It was moved by Council Member Lawson, seconded by Council Member Reitz that Council direct the County Attorney to inform the parties in the Prospect Road Condemnation cases and related Challenge Actions that Council did not authorize a revision to the Settlement terms and that Council does not agree to or consent to the revised terms of the proposed Settlement Agreement as discussed in executive session; and that Beaufort County is to proceed with the Condemnation cases and Challenge Actions, unless the settlement terms as approved by Council in March of 2024 remain in effect and are agreed upon by all parties.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member Passiment, and Council Member Reitz.

Voting Nay: Council Member McElynn. The motion passed 9:1.

8. Adjournment

COUNTY COUNCIL OF BEAUFORT COUNTY

Alice G. Howard

BY: _____
Alice G. Howard, Chairman

ATTEST:

Sarah W. Brock

_____
Sarah W. Brock, Clerk to Council
Ratified: July 13, 2026